

Award
FINRA Dispute Resolution Services

In the Matter of the Arbitration Between:

Claimant
Elise A. Gray

Case Number: 25-00822

vs.

Respondent
Morgan Stanley and
Mitchell Thomas Swayze

Hearing Site: Detroit, Michigan

Awards are rendered by independent arbitrators who are chosen by the parties to issue final, binding decisions. FINRA makes available an arbitration forum—pursuant to rules approved by the SEC—but has no part in deciding the award.

Nature of the Dispute: Customer vs. Member and Associated Person

This matter proceeded pursuant to Rule 12800 of the Code of Arbitration Procedure (“Code”) under the Special Proceeding option. The Arbitrator will issue a decision on expungement of customer dispute information in a separate, subsequent award.

The evidentiary hearing was conducted by videoconference.

REPRESENTATION OF PARTIES

Claimant Elise A. Gray (“Claimant”) appeared pro se.

For Respondents Morgan Stanley a/k/a Morgan Stanley Smith Barney LLC (“MSSB”) and Mitchell Thomas Swayze (“Swayze”), collectively, “Respondents”: Ryan Parchment, Esq., Morgan Stanley, New York, New York.

CASE INFORMATION

Statement of Claim filed on or about: April 23, 2025.

Claimant signed the Submission Agreement: April 23, 2025.

Statement of Answer filed by Respondents on or about: June 17, 2025.

Respondents signed the Submission Agreements: June 17, 2025.

CASE SUMMARY

In the Statement of Claim, Claimant asserted the following causes of action: breach of fiduciary and misrepresentation. Claimant alleged misrepresentation with respect to a Liquidity Access Line from 2021 to 2023.

Unless specifically admitted in the Statement of Answer, Respondents denied the allegations made in the Statement of Claim and asserted various affirmative defenses.

RELIEF REQUESTED

In the Statement of Claim, Claimant requested \$50,000.00 in compensatory damages, unspecified punitive damages, and other monetary relief.

In the Statement of Answer, Respondents requested that the claims against them be denied, that Claimant be denied the relief sought in the Statement of Claim, and Swayze requested expungement of all references to Occurrence Number 2367054 from Central Registration Depository ("CRD") registration records (CRD Number 1632988, Occurrence Number 2367054).

OTHER ISSUES CONSIDERED AND DECIDED

The Arbitrator acknowledges having read the pleadings and other materials filed by the parties.

The parties will have the opportunity to present oral argument and evidence on the request for expungement at a separate expungement hearing, after this award is issued. The Arbitrator will issue the decision on expungement in a separate, subsequent award.

AWARD

After considering the pleadings, the testimony and evidence presented at the hearing, and any post-hearing submissions, the Arbitrator has decided in full and final resolution of the issues submitted for determination as follows:

1. Claimant's claims are denied in their entirety.
2. Swayze's request for expungement of the above-captioned arbitration (Occurrence Number 2367054) from registration records maintained by the CRD will be decided in a separate, subsequent award.
3. FINRA Dispute Resolution Services shall retain the \$2,000.00 expungement filing fee that Swayze deposited previously, pending issuance of the Arbitrator's decision on expungement of customer dispute information in a separate, subsequent award.
4. Any and all claims for relief not specifically addressed herein, including any requests punitive damages, treble damages, and attorneys' fees, are denied.

FEES

Pursuant to the Code, the following fees are assessed:

Filing Fees

FINRA Dispute Resolution Services assessed a filing fee* for each claim:

Initial Claim Filing Fee	= \$	600.00
Expungement Filing Fee	= \$	2,000.00

**The filing fee is made up of a non-refundable and a refundable portion.*

Member Fees

Member fees are assessed to each member firm that is a party in these proceedings or to the member firm(s) that employed the associated person(s) at the time of the event(s) giving rise to the dispute. Accordingly, as a party, MSSB is assessed the following:

Member Surcharge	= \$	975.00
Member Process Fee	= \$	5,005.00

Hearing Session Fees and Assessments

The Arbitrator has assessed hearing session fees for each session conducted. A session is any meeting between the parties and the Arbitrator, including a pre-hearing conference with the Arbitrator, which lasts four (4) hours or less. Fees associated with these proceedings are:

One (1) pre-hearing session @ \$450.00/session	= \$	450.00
Pre-Hearing Conference: August 8, 2025	1 session	
One (1) hearing session @ \$450.00/session	= \$	450.00
Hearing: October 14, 2025	1 session	
Total Hearing Session Fees	= \$	900.00

The Arbitrator has assessed \$450.00 of the hearing session fees to Claimant.

The Arbitrator has assessed \$450.00 of the hearing session fees jointly and severally to Respondents.

All balances are payable to FINRA Dispute Resolution Services and are due upon receipt.

ARBITRATOR

Charles A. Palmer

-

Sole Public Arbitrator

I, the undersigned Arbitrator, do hereby affirm that I am the individual described herein and who executed this instrument, which is my award.

Arbitrator's Signature

Charles A. Palmer

Charles A. Palmer
Sole Public Arbitrator

11/05/2025

Signature Date

Awards are rendered by independent arbitrators who are chosen by the parties to issue final, binding decisions. FINRA makes available an arbitration forum—pursuant to rules approved by the SEC—but has no part in deciding the award.

November 05, 2025

Date of Service (For FINRA Dispute Resolution Services use only)